

Court No. - 39

Case :- WRIT - C No. - 4380 of 2021

Petitioner :- Ram Devi

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Mukesh Chandra Gupta

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioners, Sri Baleshwar Chaturvedi, learned counsel for respondent no.4 and learned Standing Counsel for State-respondent nos.1, 2 and 3.

The instant petition has been filed seeking following reliefs :-

"(i) Issue a writ, order or direction in the nature of mandamus commanding/directing to the respondent no.3 not to recover the amount of Rs.3,39,333/-, by forcefully manner, as the petitioner is ready to pay the due electricity amount upon her. (Notice dated 1.9.2020 is marked as Annexure No.2 to this writ petition).

(ii) Issue a writ or direction in the nature of mandamus directing to the respondent no.4 to take the due electricity bill amount in easy installment or one time settlement between the parties.

(iii) Issue a writ or direction in the nature of mandamus directing to the respondent no.4 to provide fair electricity bill till date, as the petitioner has not used the electricity since 2011 to 2012."

Submission of learned counsel for the petitioner is that petitioner had took electricity connection for domestic use on 01.08.2008 and she regularly deposited the electricity dues. Further submission is that demand notice dated 01.09.2020 has been issued against the petitioner for recovery of Rs.3,39,333/-, without deducting the amount of Rs.30,000/-, which has been deposited by the petitioner on 08.11.2020. Petitioner is an old widow lady and she is ready to

deposit the entire electricity dues.

Learned counsel appearing on behalf of respondent no.4-Power Corporation submits that if the petitioner wants to deposit the dues in installment, she may approach the concerned authority i.e. respondent no.4 under the provisions of Clause 6.14 of the Electricity Supply Code, 2005.

In view of aforesaid submissions, without entering into the merits of the case, we dispose of this writ petition with a direction to the petitioner to move a representation within two weeks from today before respondent no.4 raising her grievances under the provisions of Clause 6.14 of the Electricity Supply Code, 2005 for payment of electricity dues in easy installments and in case, said representation is moved, the same shall be considered and decided by respondent no.4 after giving an opportunity of hearing by passing an appropriate, reasoned and speaking order, as expeditiously as possible, preferably within a period of four weeks thereafter.

On deposit of first installment as may be fixed by respondent no.4, electricity connection of the petitioner shall be restored, subject to the condition that further installments shall be paid by the petitioners within the prescribed period as may be fixed. In case of default in payment, the petitioner shall not be entitled to the benefit of this order.

Order Date :- 10.2.2021

Manish Himwan